

NON-DISCLOSURE AGREEMENT

(Client Agreement)

This Non-Disclosure Agreement ("Agreement") is made and entered into by and between DigiCoders Technologies Private Limited, having its office at Lucknow, Uttar Pradesh ("Company"), and the Client named in the signature section below ("Client"), collectively referred to as the "Parties".

1. PURPOSE OF THIS AGREEMENT

During the course of engagement between the Company and the Client, either Party may receive or have access to confidential, sensitive, commercial, operational and technical information necessary for the execution of the project or services.

Such information may include, but is not limited to:

- Project requirements and business objectives;
- Client's business data and customer information;
- Website and mobile application details;
- Source code, databases and technical architecture;
- Proposals, quotations, pricing and commercial terms;
- Contracts and payment information;
- Business strategies and future plans;
- Marketing and branding information;
- Login credentials, API keys and server access details;
- Internal communications between the Parties.

The purpose of this Agreement is to ensure that such information is used responsibly, securely and only for the legitimate purpose of the project or business relationship between the Parties.

The Parties recognise that reasonable access to information is required to execute the project effectively. This Agreement is intended to support a professional working relationship, trust and data safety while protecting the legitimate interests of both Parties.

2. CONFIDENTIAL INFORMATION

For this Agreement, "Confidential Information" means any non-public information disclosed, accessed, created or handled by either Party during the course of the engagement.

Confidential Information includes, but is not limited to:

A. Client Business Information

- Client's company name, brand and contact details;
- Business model and internal processes;
- Customer and lead databases;
- Project requirements and specifications;
- Unpublished projects and future plans;
- Financial and pricing information;
- Marketing and advertising strategies.

B. Technical and Project Information

- Source code and software;
- Websites and mobile applications;
- Databases and database structures;
- APIs, server and hosting details;

- Domain information and admin panels;
- Passwords, credentials and access tokens;
- Technical architecture and documentation;
- Security practices and vulnerabilities.

C. Commercial and Contractual Information

- Proposals, quotations and pricing;
- Contracts and commercial terms;
- Payment and billing information;
- Communications between the Parties;
- Any other information that is clearly confidential or that a reasonable person would understand to be private business information of either Party.

3. CLIENT RESPONSIBILITIES

The Client agrees to:

1. Use Confidential Information received from the Company only for the authorised purpose of the project;
2. Not disclose Confidential Information to any unauthorised person;
3. Not use Company data, source code or processes for any purpose other than the agreed project;
4. Keep login credentials, access details and project information secure;
5. Not share or resell the Company's proprietary tools, code or business processes;
6. Immediately report any known or suspected data loss, accidental disclosure or unauthorised access;
7. Seek clarification from an authorised Company representative whenever unsure about whether information may be shared.

4. COMPANY RESPONSIBILITIES

The Company agrees to:

8. Use the Client's Confidential Information only for the authorised purpose of executing the agreed project;
9. Not disclose the Client's business data, project details or credentials to any unauthorised person;
10. Not use the Client's data or business information for any purpose other than the agreed engagement;
11. Take reasonable technical and administrative measures to keep the Client's information secure;
12. Not sell, transfer or misuse the Client's data, contacts or business information.

5. STORAGE, COPYING AND DATA HANDLING

Without legitimate business requirements or appropriate authorisation, neither Party shall:

- Download the other Party's databases to unauthorised personal devices;
- Save the other Party's data in unauthorised personal cloud storage;
- Forward confidential files to unauthorised email accounts;
- Copy data to USB drives or external storage devices without authorisation;
- Create duplicate databases for purposes outside the agreed project;
- Upload confidential information to unauthorised websites, software or AI tools;
- Retain the other Party's confidential data after the engagement ends, except as required by law.

6. USE OF AI TOOLS AND THIRD-PARTY PLATFORMS

Neither Party shall upload the other Party's confidential business, project or client information to unauthorised AI chatbots, generative AI platforms, public code assistants, online file converters, public repositories or third-party analysis tools.

Use of AI and third-party tools for authorised project work is permitted where such use does not expose confidential information.

7. REPORTING DATA AND SECURITY INCIDENTS

Each Party shall promptly report any known or suspected:

- Data leakage or accidental sharing;
- Lost device containing confidential data;
- Password or credential compromise;
- Suspicious login or unauthorised access;
- Accidental deletion of important project information;
- Malware, phishing or other security concerns.

A genuine accidental mistake that is promptly reported may be treated differently from intentional misuse, concealment or deliberate disclosure.

8. RETURN AND DELETION OF DATA

Upon completion, termination or discontinuation of the project, each Party shall, where reasonably required:

- Return or securely delete confidential data belonging to the other Party;
- Transfer pending project files and deliverables;
- Return access credentials, API keys and login details;
- Stop using the other Party's systems and accounts;
- Not retain confidential databases or files beyond what is legally required.

Where reasonably required, either Party may request written confirmation that data has been returned or deleted.

9. OWNERSHIP OF DATA AND WORK PRODUCT

All Client data, business records and confidential materials shared with the Company remain the property of the Client.

Subject to the commercial terms agreed between the Parties, source code, software, websites, applications, designs and other project deliverables created specifically for the Client shall be handled as agreed in the project contract or scope of work.

The Company may retain the right to use general professional knowledge, reusable components, frameworks and non-client-specific tools developed during the engagement, unless otherwise agreed in writing.

10. BREACH OF CONFIDENTIALITY

Each matter shall be considered based on its nature, seriousness, intention, impact and surrounding circumstances. However, serious actions such as:

- Selling or leaking the other Party's confidential data;
- Sharing client or business databases without authorisation;
- Intentionally copying data for personal or third-party use;
- Sharing source code, credentials or access details without authorisation;
- Using confidential information for a competing business;
- Deliberately concealing a serious data breach;

shall be treated as serious violations of this Agreement.

If a serious breach is established, the affected Party may, subject to applicable law and the terms of the project agreement, take appropriate action including suspension of access, termination of the engagement, seeking compensation for proven losses, and initiating civil or legal proceedings.

11. CONFIDENTIALITY AFTER ENGAGEMENT

The obligations of confidentiality under this Agreement shall continue after the completion, termination or discontinuation of the project or engagement, for as long as the information remains confidential in nature.

12. LEGAL REMEDIES

Unauthorised disclosure or misuse of Confidential Information may cause serious harm to the affected Party. Where a serious breach is established, the affected Party may seek remedies available under applicable law, including return or deletion of confidential information, protective or injunctive relief, compensation or damages for proven losses, and other lawful civil remedies.

13. EXCEPTIONS

This Agreement shall not restrict information that:

- Is lawfully available in the public domain;
- Was lawfully known to the receiving Party before it was disclosed;
- Was lawfully received from another source without confidentiality restrictions;
- Must be disclosed under applicable law or a valid order of a competent authority.

14. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by the laws of India.

The Parties shall first attempt to resolve any dispute through good-faith discussion and mutual communication. If a dispute cannot be resolved amicably, the matter shall be subject to the jurisdiction of competent courts at Lucknow, Uttar Pradesh, subject to applicable law.

15. GENERAL UNDERSTANDING

Both Parties confirm and understand that:

13. This Agreement protects legitimate business, project and client information of both Parties;
14. Normal and authorised project activities are not restricted by this Agreement;
15. Confidential information should be handled carefully and professionally;
16. Genuine mistakes should be reported promptly;
17. Intentional misuse or unauthorised disclosure of confidential data may result in legal action;
18. Confidentiality responsibilities may continue after the engagement ends;
19. Both Parties have read and understood this Agreement.

ACKNOWLEDGEMENT AND SIGNATURES

By signing below, both Parties acknowledge that they have read and understood this Agreement and agree to be bound by its terms.

FOR DIGICODERS TECHNOLOGIES PRIVATE LIMITED

Authorised Signatory Name: _____

Designation: _____

Signature: _____

Date: _____

Place: Lucknow, Uttar Pradesh

Company Seal

FOR THE CLIENT

Client / Company Name: _____

Authorised Signatory Name: _____

Designation: _____

Address: _____

Mobile Number: _____

Email Address: _____

Signature: _____

Date: _____

Place: _____

